

Court No. - 46

Case :- WRIT - C No. - 20910 of 2020

Petitioner :- Lavkush Tyagi

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Devi Dayal

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Naheed Ara Moonis,J.

Hon'ble Vivek Varma,J.

At the request of Sri Baleshwar Chaturvedi, learned counsel for the respondents, put up this case on 15.12.2020 as unlisted.

Order Date :- 7.12.2020

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Court No. - 39

Case :- WRIT - C No. - 20910 of 2020

Petitioner :- Lavkush Tyagi

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Devi Dayal

Counsel for Respondent :- C.S.C.,Baleshwar Chaturvedi

Hon'ble Naheed Ara Moonis,J.

Hon'ble Dinesh Pathak,J.

Heard learned counsel for the petitioner, Sri Baleshwar Chaturvedi, learned counsel appearing on behalf of respondent nos. 2, 3 and 4 and learned Standing Counsel appearing on behalf of respondent nos. 1 and 5.

This writ petition has been filed seeking following reliefs:-

"a. issue a writ, order or direction in the nature of certiorari quashing the impugned notice/recovery dated 19.12.2019 issued by the respondent no. 5.

b. Issue a writ, order or direction in the nature of mandamus directing the respondent nos. 4 and 5 to receive the actual payment of the electric bill to the petitioner.

c. Issue a writ, order or direction in the nature of mandamus directing the respondent no. 4 and 5 not to realize Rs. 2,47,627/- or interest from the petitioner in pursuance of the notice dated 19.12.2019."

Learned counsel for the petitioner informs the Court that for the disconnection of the electricity of the petitioner, neither any order was passed nor any order was passed on the application moved by the petitioner.

However, learned counsel appearing on behalf of Power Corporation i.e. respondent nos. 2, 3 and 4 submits that before permanent disconnection of the electricity of the petitioner, petitioner is required to perform certain formalities which he has failed to do so and as such, there is no illegality and perversity in the recovery notice dated 19.12.2019. The total due amount upon the petitioner is Rs. 2,47, 627/- and in case, the petitioner is disputing the said amount, he may approach before respondent no. 4 under Clause 6.5 of the U.P. Electricity Supply Code, 2005.

This fact has not been disputed by the learned counsel for the petitioner.

Considering the facts and circumstances of the case, but without entering into the merits of the case, this writ petition is ***disposed***

of directing the petitioner to move a fresh representation before respondent no.4 under Clause 6.5 of the U.P. Electricity Supply Code, 2005 within two weeks' from today ventilating his grievances and in case, such representation is moved, the same shall be considered and decided by respondent no.4 who shall pass an appropriate, reasoned and speaking order, as expeditiously as possible, preferably within a period of three weeks' from the date of receipt of a copy of this order.

For a period of six weeks or till any final decision is taken on the representation of the petitioner, whichever is earlier, no coercive action shall be taken against him.

It is made clear that if the petitioner fail to file the representation as indicated above, he shall not be entitled to get the benefit of this order.

Order Date :- 1.2.2021
Saurabh